

LICENSE AGREEMENT

THIS AGREEMENT is dated February 6, 2018, ("Effective Date"), by and between **Sunset-Miami Investments, Inc., a Florida corporation** ("Licensor") and **Alta Developers, LLC, a Florida limited liability company** ("Licensee").

WHEREAS, Licensee seeks to acquire the right to enter upon Licensor's property located at 6075 Sunset Drive, South Miami, Florida (the "Premises").

NOW, THEREFORE, in consideration of Licensee's payment to Licensor of the sum of \$10.00, receipt of which is acknowledged by Licensor, and other good and valuable consideration, the parties agree as follows:

1. Use. Licensor hereby grants to Licensee, its agents and contractors, a non-exclusive License to enter upon and use the Premises and the right of ingress and egress to and from the Premises, subject to the terms and conditions herein, for the purpose of conducting a celebration event for the upcoming City of South Miami elections, as more particularly described in the Special Event Application submitted to the City of South Miami, a copy of which is attached hereto ("License").

2. Term. This License shall commence at 6:00 a.m. on February 10, 2018 and terminate at 9:00 p.m. the same day. At the expiration or earlier termination of this License, Licensee shall immediately cease use of the Premises.

3. Conditions Applicable to License. This License is subject to all existing covenants, conditions, reservations, contracts, leases, licenses, easements, encumbrances, restrictions and rights of way with respect to the Premises, whether or not of record.

4. No Transfer or Assignment. This License is personal to Licensee. Any attempt to transfer or assign this License shall terminate it.

5. Permits and Regulations. Licensee shall be responsible for securing any required approvals, permits and authorizations from any federal, state or local agencies and shall comply with all applicable laws and regulations.

6. No Interference. Licensee shall not interfere with the normal operation and activities of Licensor, and Licensee shall conduct its activities on the Premises to minimize damage to the Premises and inconvenience to Licensor, its tenants, agents, employees and invitees.

7. Repair and Restoration. If Licensee, its agents or contractors cause any damage to the Premises, or to Licensor's roads, infrastructure or other property and improvements (collectively "Property") in connection with the exercise of this License, Licensee shall repair and restore the Premises and Property to their original condition prior to Licensee's use of the Premises pursuant to this License. Licensee shall

perform the repair and restoration required hereunder prior to the expiration of this License, or within ten (10) days of the earlier termination of Licensee's rights hereunder. In the event that repair and restoration is performed following the termination this License, the Licensee's Indemnity and Insurance obligations shall continue until repair and restoration is completed as provided herein.

8. Breach and Cure. In the event that Licensee breaches any of its obligations under this License, Licenser shall send Licensee written notice specifying the nature of such breach. Licensee shall have ten (10) days from the receipt of such notice within which to cure such breach. If more time is reasonably required for Licensee's performance, then Licensee shall notify Licenser in writing of its proposed schedule for performance and commence performance within such ten (10) day period; thereafter, Licensee shall diligently proceed to completion. If Licensee fails to cure or to commence cure within such ten (10) day period, then Licenser shall have the right to terminate this License immediately by serving Licensee with written notice of termination. Licenser shall have all rights and remedies available under Florida law including, but not limited to, actions for damages and specific performance, for any breach of Licensee's obligations hereunder.

9. Alteration in Writing. This License supersedes any and all prior understandings and agreements, whether written or oral, between the parties with respect to the subject matter of this License. No alteration or variation of this License shall be valid unless made in writing and signed by Licenser and Licensee.

10. Indemnification. Licensee shall indemnify, defend, and hold harmless Licenser, its officers, agents and employees, from and against any claims, damages, costs, expenses, or liabilities (collectively "Claims") arising out of or in any way connected with this License including, without limitation, Claims for loss or damage to any property, or for death or injury to any person or persons arising from the negligent or intentional acts or omissions of Licensee, its officers, agents, partners, invitees or employees.

11. Insurance.

Licensee, at its sole cost and expense, shall insure its activities in connection with this License and obtain, keep in force, and maintain a policy of General Liability Insurance, naming the Licenser as additional insured, in the amount of not less than \$1,000,000.00.

The coverages required herein shall not limit the liability of Licensee.

The coverages referred to in this Section 11 shall include Licenser as an additional insured. Licensee, upon the execution of this License, shall furnish Licenser with certificates of insurance evidencing compliance with all requirements.

12. Waiver of Subrogation. Licensee hereby waives any right of recovery against Licensors due to loss of or damage to the property of Licensee when such loss of or damage to property arises out of an act of God or any of the property perils included in the classification of fire or extended perils ("all risk" as such term is used in the insurance industry) whether or not such perils have been insured, self-insured, or non-insured.

13. Lien Free Condition. Licensee shall not cause or permit any liens to be placed against the Premises or against Licensors other property as a result of Licensee's exercise of rights under this License. In the event of the filing of any such liens, Licensee shall promptly cause such liens to be removed. In no event shall such lien removal require more than thirty (30) days.

IN WITNESS WHEREOF, the parties have executed this License Agreement the day and year first above written.

LICENSOR:

Sunset-Miami Investments, Inc.,
a Florida corporation

By: _____
G. Frank Quesada, Assistant Vice-
President
Date: _____

LICENSEE:

Alta Developers, LLC,
a Florida limited liability company

By: **Strategic Urban Developers LLC**,
a Florida limited liability company

By: **Strategic Properties Associates
Group LLC**, a Florida limited
liability company, Manager

By: _____
Henry Pino, Manager
Date: _____

By: **Archiplan USI I, LLC**, a Florida
limited liability company, Manager

By: **Archiplan Alta, LLC**, a Florida
limited liability company

By: _____
Felipe R. Onetto, Manager
Date: _____